NCRWC AND WORKING OF THE CONSTITUTION

NCRWC IDENTITY, MANDATE AND → CONSULTATION AND INSTITUTIONAL IDENTITY → WORKING OF THE CONSTITUTION → RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS → IMPLEMENTATION AUDIT: EXACT, MODIFIED → ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repeats missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artifacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g5 and all prior artifacts unchanged

00

STAGE 00 NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY

NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY · ROOT QUESTION · HOW CAN CONSTITUTIONAL PERFORMANCE BE REVIEWED WITHOUT CLAIMING CONSTITUENT POWER? · 2000 GOVERNMENT RESOLUTION · TEMPORARY EXECUTIVE ADVISORY COMMISSION. · JUSTICE M.N. VENKATACHALIAH · 11 MEMBERS · REPORT SUBMITTED IN 2002.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• ROOT QUESTION • How can constitutional performance be reviewed without claiming constituent power? • 2000 Government resolution → temporary executive advisory commission.	• Justice M.N. Venkatachaliah → chair • 11 members • report submitted in 2002.	• MANDATE review fifty years of working → effective governance + socio-economic development. • BOUNDARY parliamentary democracy + basic structure preserved. • VERDICT review of working != rewriting the Constitution.	• MUST REMEMBER: Treat every NCRWC proposition as a 2002 recommendation unless • a later constitutional amendment, statute, rule or judgment independently proves law.

MECHANISM / VERDICT — MUST REMEMBER: Treat every NCRWC proposition as a 2002 recommendation unless a later constitutional amendment, statute, rule or judgment independently proves law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Treat every NCRWC proposition as a 2002 recommendation unless a later constitutional amendment, statute, rule or judgment independently proves law.

01

STAGE 01 CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL

CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL · CONSULTATION PAPERS + EXPERT STUDIES + PUBLIC RESPONSES → · ADVISORY REPORT. · CONSTITUENT ASSEMBLY · FRAMED CONSTITUTION. · PARLIAMENT/ART 368 · AMENDS THROUGH CONSTITUTIONAL PROCEDURE. · LAW COMMISSION

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report. CONSTITUENT ASSEMBLY → framed Constitution.	PARLIAMENT/ART 368 → amends through constitutional procedure. LAW COMMISSION → law-reform reports.	SARKARIA/PUNCHHI → Centre-State review. NCRWC → comprehensive working review, no constituent authority.	TRAP expertise and consultation create persuasion, not legal force. CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report. • CONSTITUENT ASSEMBLY → framed Constitution.	• PARLIAMENT/ART 368 → amends through constitutional procedure. • LAW COMMISSION → law-reform reports.	• SARKARIA/PUNCHHI → Centre-State review. • NCRWC → comprehensive working review, no constituent authority.	• TRAP expertise and consultation create persuasion, not legal force. • CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP expertise and consultation create persuasion, not legal force.

02

STAGE 02 WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

WORKING OF THE CONSTITUTION · TEXT TO LIVED PERFORMANCE · ARTICLES + PARTS + SCHEDULES · PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS + · PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES · OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST · KESAVANANDA BHARATI (1973) · STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies → PRACTICE conventions + parties + administration + political incentives → OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• Articles + Parts + Schedules • Parliament + executive + courts + federal units + bodies	• PRACTICE conventions + parties + administration + political incentives • OUTCOMES rights + accountability + deliberation + federal trust + remedies.	• Kesavananda Bharati (1973) → structural boundary. • Minerva Mills (1980) → limited amendment + rights-DPSP harmony.	• Articles + Parts + Schedules • Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Minerva Mills (1980) → limited amendment + rights-DPSP harmony.

03

STAGE 03 RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION · DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES. · PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION. · ADMINISTRATION SITTINGS, COMMITTEES, PRIVILEGES, MINISTRY SIZE, CIVIL SERVICES AND · LOCAL GOVERNMENT APPOINTMENTS, ACCESS, GOVERNOR, ART 356, COUNCILS AND · STATUS EVERY NODE · NCRWC RECOMMENDATION UNTIL SEPARATELY ENACTED.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties. ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.	PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity. JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.	STATUS every node = NCRWC recommendation until separately enacted. RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection. PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties. • ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.	• PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity. • JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.	• STATUS every node = NCRWC recommendation until separately enacted. • RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	• ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection. • PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS every node = NCRWC recommendation until separately enacted.

04

STAGE 04 IMPLEMENTATION AUDIT: EXACT, MODIFIED, SIMILAR OR PENDING

IMPLEMENTATION AUDIT · EXACT, MODIFIED, SIMILAR OR PENDING · LATER INSTRUMENT · LEGAL EFFECT · 10% MINISTRY CEILING · 91ST AMENDMENT (2003) USES 15% · MODIFIED RELATED REFORM, NOT EXACT ADOPTION. · JUDICIAL COMMISSION

PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT

10% ministry ceiling → 91st Amendment (2003) uses 15% → modified related reform, not exact adoption. → Judicial commission

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT • 10% ministry ceiling • 91st Amendment (2003) uses 15% → modified related reform, not exact adoption.	• Judicial commission • NJAC enacted 2014, invalidated 2015 → not current NCRWC design. • party law + narrow whip	• no comprehensive enactment → substantially pending. • disaster to Concurrent List • Disaster Management Act 2005, no List transfer → statutory response, not adoption.	• RULE chronology + similarity != proven implementation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT.

05

STAGE 05 ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE · ACCOUNTABILITY ELECTIONS · JUDICIAL REVIEW. · LEGISLATURE SITTING TIME · DELEGATED LAW · FINANCIAL CONTROL. · FEDERAL PRACTICE CONSULTATION · GOVERNOR RESTRAINT · ACCOUNTABILITY elections

judicial review. → LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control. → FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• ACCOUNTABILITY elections • judicial review.	• LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control. • FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.	• S.R. Bommai (1994) → federal and secular structural enforcement. • TRAP majority strength or coalition form does not itself prove good constitutional working.	• CLOSE DISTINCTION: Separate constitutional text, institutional capacity, conventions, party practice, federal trust, rights outcomes and effective remedies • ACCOUNTABILITY elections

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP majority strength or coalition form does not itself prove good constitutional working.

06

STAGE 06 CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT · CONSTITUTIONAL MORALITY TEXT + PROCEDURE + EQUAL CITIZENSHIP + · K.S. PUTTASWAMY (2017) PRIVACY + DIGNITY IN MODERN GOVERNANCE. · NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) CONSTITUTIONAL · RIGHTS WORKING GUARANTEE · AFFORDABLE REMEDY · PUBLIC JUSTIFICATION. · LIMIT MORALITY IS NOT PERSONAL PREFERENCE; LATER CASES ARE

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017) privacy + dignity in modern governance. → Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights. → RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint. • K.S. Puttaswamy (2017) privacy + dignity in modern governance.	• Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights. • RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.	• LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence. • CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.	• K.S. Puttaswamy (2017) privacy + dignity in modern governance. • Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence.

07

STAGE 07 REFORM-METHOD LADDER AND FEASIBILITY TEST

REFORM-METHOD LADDER AND FEASIBILITY TEST · DIAGNOSE TEXT GAP? CONVENTION FAILURE? CAPACITY DEFICIT? INCENTIVE FAILURE? · PRACTICE/CONVENTION REPAIR EXECUTIVE RULE OR CAPACITY ORDINARY LEGISLATION · ARTICLE 368 AMENDMENT · TEST BASIC STRUCTURE + RIGHTS + FEDERALISM + DEMOCRATIC · VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation → Article 368 amendment → TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap? • practice/convention repair executive rule or capacity ordinary legislation	• Article 368 amendment • TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.	• VERDICT use the least legally sufficient and institutionally workable route. • DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?	• practice/convention repair executive rule or capacity ordinary legislation • Article 368 amendment

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT use the least legally sufficient and institutionally workable route.

08

STAGE 08 VERIFIED PROVENANCE AND ELEVEN-MEMBER COMPOSITION

VERIFIED PROVENANCE AND ELEVEN-MEMBER COMPOSITION · 22 FEBRUARY 2000 · GOVERNMENT RESOLUTION CONSTITUTES NCRWC. · CHAIR + INITIAL MEMBERSHIP · M.N. VENKATACHALIAH + TEN MEMBERS · ELEVEN; P.A. SANGMA LATER RESIGNED. · SECRETARY RAGHBIR SINGH WAS NOT A COMMISSION MEMBER. · 11 MARCH 2002

22 FEBRUARY 2000 → Government resolution constitutes NCRWC. → CHAIR + INITIAL MEMBERSHIP → M.N. Venkatachaliah + ten members = eleven; P.A. Sangma later resigned. → Secretary Raghbir Singh was not a Commission member.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• 22 FEBRUARY 2000 • Government resolution constitutes NCRWC. • CHAIR + INITIAL MEMBERSHIP	• M.N. Venkatachaliah + ten members = eleven; P.A. Sangma later resigned. • Secretary Raghbir Singh was not a Commission member. • 11 MARCH 2002	• Report adopted and signed. • 31 MARCH 2002 • Report presented to the Prime Minister.	• Executive origin + expert composition produced advice, not constituent authority.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Executive origin + expert composition produced advice, not constituent authority.

09

STAGE 09 RECOMMENDATION METRICS AND EXACT HIGH-YIELD PROPOSALS

RECOMMENDATION METRICS AND EXACT HIGH-YIELD PROPOSALS · 249 RECOMMENDATIONS · 58 CONSTITUTIONAL AMENDMENT · 88 LEGISLATION · 105 EXECUTIVE ACTION. · LS 120 DAYS · RS 100 · STATE HOUSES 90 OR 50.

58 constitutional amendment	88 legislation	105 executive action.	
LS 120 days	RS 100	State Houses 90 or 50.	
GOVERNMENT constructive no-confidence	20% notice	alternative leader	10% ministry ceiling.
HC age 65	SC age 68	Governor about 6 months	President about 3 months.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• 249 RECOMMENDATIONS • 58 constitutional amendment • 88 legislation • 105 executive action. • LS 120 days	• RS 100 • State Houses 90 or 50. • GOVERNMENT constructive no-confidence • 20% notice • alternative leader	• 10% ministry ceiling. • JUDICIARY / FEDERALISM • HC age 65 • SC age 68 • Governor about 6 months	• President about 3 months. • Each number is a report proposal unless a later legal instrument is separately proved.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Each number is a report proposal unless a later legal instrument is separately proved.

10

STAGE 10 PERFORMANCE DASHBOARD AND EXECUTABLE ANSWER AUDIT

PERFORMANCE DASHBOARD AND EXECUTABLE ANSWER AUDIT · PERFORMANCE DASHBOARD · SITTINGS + SCRUTINY + FINANCE + DEBATE. · RESPONSIBILITY + LEGALITY + TRANSPARENCY + DELIVERY. · ACCESS + INDEPENDENCE + PENDENCY + ACCOUNTABILITY. · CONSULTATION + FISCAL TRUST + RESTRAINT + DISPUTE RESOLUTION. · LOCAL GOVERNMENT · FUNCTIONS + FUNDS + FUNCTIONARIES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PERFORMANCE DASHBOARD Legislature → sittings + scrutiny + finance + debate.	Executive → responsibility + legality + transparency + delivery. Judiciary → access + independence + pendency + accountability.	Federalism → consultation + fiscal trust + restraint + dispute resolution. Local government → functions + funds + functionaries.	Rights → affordable remedy + compliance + equal citizenship. ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PERFORMANCE DASHBOARD • Legislature → sittings + scrutiny + finance + debate.	• Executive → responsibility + legality + transparency + delivery. • Judiciary → access + independence + pendency + accountability.	• Federalism → consultation + fiscal trust + restraint + dispute resolution. • Local government → functions + funds + functionaries.	• Rights → affordable remedy + compliance + equal citizenship. • ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

11

STAGE 11 UPSC SYNTHESIS: COMMISSION REPORT TO CONSTITUTIONAL ANSWER

UPSC SYNTHESIS · COMMISSION REPORT TO CONSTITUTIONAL ANSWER · PRELIMS FIREWALL · 2000 RESOLUTION · 11 MEMBERS · 2002 REPORT ADVISORY · REVIEW, NOT REWRITE · RECOMMENDATIONS, NOT LAW.

PRELIMS FIREWALL → 2000 resolution → 11 members → 2002 report advisory → review, not rewrite

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PRELIMS FIREWALL • 2000 resolution • 11 members • 2002 report advisory • review, not rewrite	• recommendations, not law. • MAINS SPINE identity → mandate → working beyond text → recommendation clusters • implementation audit → morality/accountability/federal practice → reform ladder. • PYQ ROUTE constitutional morality • electoral reform	• judicial accountability • basic structure. • NCRWC is a diagnostic reform menu subject to constitutional route and present-law verification. • CURRENT CONTROL: 5 SEPTEMBER 2026 • The official NCRWC report remains advisory. A later amendment, Act, rule, judgment or executive instrument must independently prove law	• similarity and chronology do not prove implementation. • LEGAL/SOURCE LIMIT: The official NCRWC report remains advisory • resemblance, chronology or shared policy language does not prove implementation or causation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The official NCRWC report remains advisory. A later amendment, Act, rule, judgment or executive instrument must independently prove law;.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · INSTITUTIONAL-PERFORMANCE FRAMEWORK · REFORM SEQUENCING AND IMPLEMENTATION CAUSATION · CONSTITUTIONAL MAINTENANCE VERSUS CONSTITUTIONAL REPLACEMENT · COMPARATIVE EVALUATION · THE CORE INDEPENDENTLY SUPPLIES IDENTITY, MANDATE, EXACT RECOMMENDATION ANCHORS · USE ONLY AFTER THE COMPLETE CORE. · RECOMMENDATIONS REMAIN NON-BINDING UNLESS A LATER LEGAL INSTRUMENT SAYS

OPTIONAL DOCTRINE / CASE

- Institutional-performance framework
- Reform sequencing and implementation causation
- Constitutional maintenance versus constitutional replacement
- Comparative evaluation

ADVANCED LIMIT

- Firewall: The Core independently supplies identity, mandate, exact recommendation anchors, implementation auditing, evaluation and answer execution.
- Use only after the complete Core.
- Recommendations remain non-binding unless a later legal instrument is separately identified.
- Institutional-performance framework Constitutional working can be evaluated through four linked capacities: | Capacity |

COMPARATIVE NUANCE

- Question | Evidence route | | ---|---|---| | Authorisation | Is the actor constitutionally empowered?
- text, statute, rule | | Restraint | Are rights, federalism and role limits respected?
- reasons, review, conventions | | Delivery | Can the institution convert authority into timely outcomes?
- staffing, procedure, finance | | Correction | Can failure be exposed and remedied?

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels